

Appendix XI-G(1)
Residential Warrant of Removal
(Una traducción al español comienza en la página 3)

Docket No. _____

Superior Court of New Jersey
Law Division - Special Civil Part

Landlord/Tenant Section _____ County

Plaintiff(s) - Landlord(s)

- vs -

Defendant(s) - Tenant(s)

Phone No. _____

To: _____

RESIDENTIAL WARRANT OF REMOVAL

(Tenant(s))

You are to vacate and remove all of your possessions from the above address within three business days after receiving this warrant. Do not count Saturday, Sunday or legal holidays in calculating the three days. If you do not move within three days, a Special Civil Part Court Officer will remove all persons from the property at any time between the hours of 8:30 a.m. and 4:30 p.m. on or after _____, _____, and will require the tenant to vacate the premises and permit the landlord to change the locks. You must leave with your property by 8:30 a.m. on _____ unless you have an order from a judge allowing you to stay longer. Afterward, your possessions may be removed by the landlord, in accordance with N.J.S.A. 2A:18-72 *et seq.*

It is a crime for a tenant to damage or destroy a rental property to retaliate against a landlord. In addition to imposing criminal penalties, the court may require a tenant to pay for any damage.

You may be able to stop this warrant and remain in the property if you apply to the Special Civil Part Court for relief. You may apply for relief by delivering a written request to the Office of the Special Civil Part and to the landlord or landlord's attorney. **Your request must be received by the Office of the Special Civil Part within three days after this warrant was served or you may be locked out.** Before stopping this warrant, the court may include certain conditions, such as the payment of rent.

You can also file a motion under *Rule* 4:50-1 requesting that the judgment for possession be vacated (reversed) and the complaint dismissed, if you can show good reason such as mistake or excusable neglect, fraud, misrepresentation or other misconduct by an adverse party, newly discovered evidence or any other reason justifying relief from the judgment for possession.

If you were sued for nonpayment of rent only, you may be able to stop this warrant and remain in the property if you pay all rent due and owing plus proper costs up until the third business day following the eviction. The landlord must accept this payment and/or cooperate with a rental assistance program or charitable organization that has committed to pay the rent.

You may be eligible for housing assistance or other social services. To determine your eligibility, you must contact the welfare agency in your county at

telephone number _____.

Only a Special Civil Part Officer can execute this warrant. It is illegal for a landlord to padlock or otherwise block entry to a rental property while a tenant who lives there is still in legal possession. See the attached Notice Regarding Illegal Eviction for further information. If your property has been taken or you have been locked out or denied use of the rental property by anyone other than a Special Civil Part Officer who is executing a warrant of removal, you can contact the Office of the Special Civil Part for help in (a) requesting an emergency order to return your property and/or put you back into your home; and/or (b) filing a lawsuit requesting money damages. Please have this notice with you when you contact the Office of the Special Civil Part and/or file anything with the court related to this matter.

If you do not have an attorney, you may call the Lawyer Referral Service at _____.
If you cannot afford an attorney, you may call Legal Services at _____.

Date: _____

(Judge)

Clerk of the Superior Court

Apéndice XI-G(1)
Orden de desalojo de una residencia

Para la información específica en esta causa, vea la versión en inglés.

Número del expediente _____

Tribunal Superior de Nueva Jersey
División de Derecho - Parte Civil Especial
Sección de Propietarios/Inquilinos del
Condado de _____

Demandante(s) – Propietario(s)
- contra -

Teléfono _____

Demandado(s) – Inquilino(s)

**ORDEN DE DESALOJO DE UNA
RESIDENCIA**

A: _____

(Inquilino(s))

Usted tiene que desalojar la dirección arriba mencionada y retirar de ella todas sus pertenencias dentro de los tres días laborales después de recibir esta orden. No cuente los sábados, domingos ni los días feriados al calcular los tres días. Si no se muda dentro de tres días, un Oficial de la Parte Civil Especial sacará a todas las personas de la propiedad en cualquier momento entre las 8:30 de la mañana y las 4:30 de la tarde, en la siguiente fecha _____, _____, o después de esa fecha, y exigirá que el inquilino desaloje el lugar y permita que el propietario cambie las cerraduras. Usted tiene que irse con sus pertenencias, a más tardar para las 8:30 de la mañana del _____ a menos que tenga una orden del juez que le permita quedarse más tiempo. Posteriormente, el propietario, de acuerdo con la ley N.J.S.A 2A:18-72 y *siguientes*, puede sacar sus pertenencias.

Es un delito que un inquilino dañe o destruya una propiedad alquilada para tomar represalias contra un propietario. Además de imponerle penalidades por el delito, el juez puede exigir que un inquilino pague por cualquier daño que haya causado.

Es posible que usted pueda detener la ejecución de esta orden y permanecer en la propiedad si solicita una protección al Tribunal de la Parte Civil Especial. Puede solicitar la protección entregando una petición por escrito a la Oficina de la Parte Civil Especial y al propietario o al abogado del propietario. **Su petición se tiene que recibir en la Oficina de la Parte Civil Especial dentro de los tres días después de la entrega de esta orden o le pueden cerrar el acceso a su vivienda (lock-out).** Antes de detener la ejecución de esta orden, es posible que el juez incluya ciertas condiciones, tal como el pago del alquiler.

Usted también puede presentar un pedimento bajo la *Regla* 4:50-1 pidiendo que el fallo de posesión se rescinda (se revoque) y se desestime la denuncia, si usted puede mostrar un

motivo fundado, tal como un error o negligencia excusable, fraude, representación falsa u otra conducta indebida por una parte contraria, alguna prueba recién descubierta o cualquier otra razón que justifique una protección contra el fallo de posesión.

Si lo demandaron solamente por impago del alquiler, es posible que pueda detener la ejecución de esta orden y permanecer en la propiedad si paga todo el alquiler vencido y exigible más los costos apropiados adeudados hasta el tercer día laborable después del desalojo. El propietario tiene que aceptar este pago y/o cooperar con un programa para ayuda con el alquiler o con una organización benéfica que se haya comprometido a pagar el alquiler.

Es posible que usted reúna los requisitos para recibir ayuda con el alquiler u otros servicios sociales. Para determinar si reúne los requisitos, tiene que ponerse en contacto inmediatamente con la agencia de bienestar social de su condado en

número de teléfono _____.

Solo un Oficial de la Parte Civil Especial puede ejecutar esta orden. Es ilegal que un propietario ponga un candado en la puerta o de otro modo bloquee la entrada a la propiedad alquilada mientras que un inquilino que viva en ella todavía tenga la posesión legal. Vea la Notificación sobre el Desalojo Ilegal, adjunta, para obtener información adicional. Si cualquier persona, que no sea el Oficial de la Parte Civil Especial que esté ejecutando una orden de desalojo, ha tomado sus pertenencias o le ha cerrado el acceso a la propiedad alquilada o le ha negado el uso de la misma, usted puede ponerse en contacto con la Oficina de la Parte Civil Especial para que le ayuden con el fin de (a) pedir una orden urgente para que le devuelvan su propiedad y/o lo reintegren a su hogar; y/o (b) presentar una demanda solicitando daños monetarios. Sírvasse tener esta notificación con usted cuando se comuniquen con la Oficina de la Parte Civil Especial y/o presente ante el tribunal cualquier cosa relacionada con este asunto.

Si usted no tiene un abogado, puede llamar a las oficinas del Servicio de Recomendación de Abogados del Colegio de Abogados de su Condado al teléfono: _____. Si no puede pagar un abogado, puede llamar a Servicios Legales al _____.

Fecha: _____

(Juez)

Secretario del Tribunal Superior

NOTICE: This is a public document, which means the document as submitted will be available to the public upon request. Therefore, do not enter personal identifiers on it, such as Social Security number, driver's license number, vehicle plate number, insurance policy number, active financial account number, or active credit card number.

YOU MUST COMPLETE THIS PART: Filing Attorney Information or Landlord:

Name _____

NJ Attorney ID Number _____

Address _____

Telephone Number _____

_____,
Plaintiff,

v.

_____,
Defendant.

Superior Court of New Jersey
Law Division, Special Civil Part

_____ County

Landlord-Tenant Division

Docket Number: LT _____

Civil Action

Certification by Landlord

The landlord should complete Part A or Part B or both (if both apply). Cross out any paragraphs in those parts that do not apply in this case. Part C applies to all cases and must be completed.

A. When the Eviction is Based on Unpaid Rent

1. The tenant has failed to pay rent now due and owing in the amount of \$_____. That amount consists of basic rent of \$_____, late charges of \$_____, legal fees *relating to this action for eviction* of \$_____, filing fees and costs of \$_____, and other (specify) _____.
2. All of the items listed above are included in the lease agreement as rent.
3. All of those items are permitted by applicable federal, state and local laws (including rent control or rent leveling, if applicable) to be charged as rent for purposes of this action.

B. When the Eviction is Based on Other Grounds

Eviction is sought because:

C. In All Cases

1. I have attached a copy of all notices that have been served on the tenant.
2. These notices were served on the tenant (select all that apply)
☐ by ordinary mail, ☐ by certified mail, ☐ personally, on _____.
3. All of the facts stated in the notices are true.
4. If I proceeded without an attorney, I certify that I own the property in my own name or in the name of a general partnership of which I am a partner.
5. I have complied with the registration requirements of *N.J.S.A. 46:8-27 et seq.*
6. The tenant did not transfer ownership to me and I have not given the tenant an option to buy the property.
7. The tenant is not in the military service of the United States nor any of its allies, nor is the premises used for dwelling purposes of the spouse, a child or other dependent of a person in the military service of the United States.

I, the landlord, certify that the foregoing statements made by me are true. I am aware that if any of the foregoing statements made by me are willfully false, I am subject to punishment.

Date: _____



Landlord Signature

Print Name

NOTICE: This is a public document, which means the document as submitted will be available to the public upon request. Therefore, do not enter personal identifiers on it, such as Social Security number, driver's license number, vehicle plate number, insurance policy number, active financial account number, active credit card number, or military status.

Plaintiff or Filing Attorney Information:

Name _____

NJ Attorney ID Number _____

Address _____

Email _____

Telephone Number _____

Superior Court of New Jersey

Law Division, Special Civil Part

_____ **County**

Docket Number: LT - _____

(to be provided by the court)

_____ Plaintiff(s)
versus

_____ Defendant (s)

**Civil Action
SUMMONS
LANDLORD/TENANT**

Name: _____

Address: _____

Email _____

Phone: _____

_____ Nonpayment

_____ Other

_____ Commercial

_____ Residential

NOTICE TO TENANT: The purpose of the attached complaint is to permanently remove you and your belongings from the premises. You will be notified when a court proceeding is scheduled. Please contact the Office of the Special Civil Part at _____ ext. _____ regarding your case. Please go to njcourts.gov for general information on landlord/tenant actions.

If you cannot afford to pay for a lawyer, free legal advice may be available by contacting Legal Services at _____. If you can afford to pay a lawyer but do not know one, you may call the Lawyer Referral Services of your local county Bar Association at _____.

You may be eligible for housing assistance. To determine your eligibility, you must immediately contact the welfare agency in your county at _____, telephone number _____.

If you need an interpreter or an accommodation for a disability, you must notify the court immediately.

Si ud. no tiene dinero para pagar a un abogado, es posible que pueda recibir consejos legales gratuitos si se comunica con Servicios Legales (Legal Services) al _____. Si tiene dinero para pagar a un abogado pero no conoce ninguno puede llamar a Servicios de Recomendación de Abogados (Lawyer Referral Services) del Colegio de Abogados (Bar Association) de su condado local al _____.

Es posible que pueda recibir asistencia con la vivienda si se comunica con la agencia de asistencia publica (welfare agency) de su condado al _____, telefono _____.

Si necesita un interprete o alguna acomodación para un impedimento fisico, tiene que notificárselo inmediateamente al tribunal.

Date: _____

Clerk of the Superior Court

COURT OFFICER'S RETURN OF SERVICE (FOR COURT USE ONLY)

Docket Number: _____ Date: _____ Time: _____
WM ____ WF ____ BM ____ BF ____ OTHER ____ HT ____ WT ____ AGE ____ MUSTACHE ____ BEARD ____ GLASSES ____
NAME: _____ RELATIONSHIP: _____

Efforts Made to Personally Serve _____

Description of Premises if Posted _____

I hereby certify the above to be true and accurate: _____
Special Civil Part Officer